Kshs 100/=
Kshs 40/=
A. F. Nabira *242

CBE Draft June 11
, 2020
CONFIDENTIAL

AMENDMENT AND AGREEMENT

THIS AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 22nd June, 2020 (the "**Effective Date**"), by and among:

1. CrossBoundary Energy Holdings ("**System Owner**") incorporated in Kenya, having its registered address at ABC Place, Waiyaki Way, Westlands, Nairobi, Kenya 00100; and
2. XFlora Group Ltd. ("**Customer**") incorporated in Kenya, having its registered address at: C56 Njoro Rd, Njoro, Nakuru County Kenya;

Hereinafter referred individually as each a "**Party**" and together, the "**Parties**."

RECITALS

A. System Owner and Customer entered into a Solar Services Agreement dated on or about 1 July, 2019 in connection with the design, construction and operation of a photovoltaic electricity generation system (the "**Facility**") for the benefit of the Customer (the "**SSA**");

B. COVID-19 pandemic has resulted in delays in shipping of solar equipment and will therefore delay the start of construction of the Facility and have necessitated a change to the Anticipated Commercial Operation Date of the Facility, which the Parties seek to acknowledge and agree.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions**. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA.

2. **Confirmation**. No Party is in default under the SSA and, to the best of each party's knowledge, no facts or circumstances exist which, with the passage of time or the giving of notice or both, would constitute a default or breach by any Party of the SSA.

3. **Amendment**. Notwithstanding anything to the contrary in the SSA, and effective as of the Effective Date, the Parties hereby acknowledge and agree the amendment as follows:

   3.1. Anticipated Commercial Operation Date. The Anticipated Commercial Operation Date is September 30, 2020.

4. **No Other Modification to SSA**. Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

5. **Miscellaneous**. This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitute one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement shall be read in conjunction with the SSA.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Effective Date.

COLLECTOR OF STAMP DUTIES NAIROBI 7.9.21
KENYA REVENUE PAID Shillings Kshs 100

XFLORA GROUP LIMITED

By:_____

Name: INDER NATH

Title: DIRECTOR

Date: 22nd JUNE 2020

CROSSBOUNDARY ENERGY HOLDINGS (KENYA)

By:_____

Name: MATTHEW TULGAN

Title: DIRECTOR

Date: 22 JUNE 2020